

**FEDERAL BUREAU OF INVESTIGATION****FINANCE DIVISION | PROCUREMENT SECTION****JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND
OPEN COMPETITION (JOFOC)**

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH
TITLE 41 U.S.C. 3304 (A) (1)

UNDER SIMPLIFIED ACQUISITION THRESHOLD

Requisition Number: SHOP-PR-25-001070

Date: 13 March 2025

Estimated Contract Dollar Value: \$_____

1. Identification of the agency and contracting activity.

The U.S. Department of Justice (DOJ), Federal Bureau of Investigation (FBI), Procurement Section (PS), National Acquisition Programs Unit (NAPU), has prepared this justification for other than full and open competition for the acquisition of a Resodyn LabRAM II Bench Top Mixing System on behalf of the Laboratory Division (LD), Terrorist Explosive Device Analytical Center (TEDAC) Section, TIEDS Unit.

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

In accordance with a statutory exception to the fair opportunity process, the FBI contemplates the award of a one-time, sole-source, firm-fixed-price, commercial contract to Resodyn Acoustic Mixers, Inc., (CAGE Code 5GK13], 130 N Main Street, Suite 630, Butte, Montana (MT), 59701 for one (1) Resodyn LabRAM II Bench Top Mixing System.

3. A description of the supplies or services required to meet the agency's needs.

The FBI's mission is to protect and defend the United States against terrorist and foreign intelligence threats; to uphold and enforce criminal laws of the United States; and to provide leadership and criminal justice services to federal, state, municipal, and international agencies and partners; and to perform these responsibilities in a manner that is responsive to the needs of the public and is faithful to the Constitution of the United States of America (USA).

The TEDAC Improvised Explosives Detection and Synthesis (TIEDS) Center Unit exists to produce and characterize improvised and home-made explosive materials alongside the Transportation Security Administration (TSA) and the Department of Homeland Security Science and Technology Directorate (DHS-S&T) in a collaborative partner engagement.

The TIEDS Center is a dynamic research-focused Unit dedicated primarily to real-time, credible emerging threats as determined by intelligence and/or current world events. The mission of the TIEDS Center requires the Unit to be agile and able to respond quickly and decisively to these threats to include full production, chemical and thermal analyses, small-scale safety testing, detection technology screening, machining and/or fabrication of housing, etc. The TIEDS Center routinely uses remote mixing capability to safely mix hazardous and nonhazardous materials that may or may not be explosive in nature.

The FBI purchased a Resodyn LabRAM mixer for the TIEDS Center on June 10th, 2015, via Purchase Order (PO) Number DJF151200P0006862. This LabRAM mixer suffered a catastrophic failure in 2025, and this equipment needs to be replaced right away.

This acquisition includes the following:

- One (1) LabRAM II Bench Top Mixing System with a 1 kg payload.
- One (1) five-inch diameter extra tall vessel holder.
- One (1) standard vessel holder.
- One (1) tall vessel holder.
- Proprietary RAM Tools software.
- Proprietary RAM Viewer software.
- Freight charges to Redstone Arsenal, Alabama (AL).
- Shipping insurance.

The manufacturer of the LabRAM II Bench Top Mixing System is Resodyn Acoustic Mixers, Inc.

The LabRAM II Bench Top Mixing System is made in Butte, MT, USA.

Resodyn Acoustic Mixers, Inc. is a small business.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, *“Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.”*

5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

Resodyn Acoustic Mixers, Inc. is the sole manufacturer and distributor of mixers using Resonant Acoustic Mixing (RAM) technology. This technology was developed for media-free mixing and blending of sensitive materials, such as explosives.

TIEDS Center personnel are already trained, experienced users of Resodyn mixers, minimizing training requirements. By minimizing the time needed for training, testing, and validation of this instrument, the TIEDS Center will be able to focus on using the new LabRAM II mixing system to support their research and development mission quicker.

The LabRAM II Bench Top Mixing System is a unique instrument that allows for extremely efficient mixing of materials while delivering low energy input to the materials being combined. The TIEDS Center works with inherently hazardous materials regularly, and these substances can react very destructively with too high of energy input. Resodyn RAM technology has been reliable for the TIEDS Center since the Unit's inception in 2015. This instrument is essential and a priority to execute the mission of TIEDS.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

A Notice of Intent (NOI) to award a sole-source contract to Resodyn Acoustic Mixers, Inc. will be posted on the SAM.gov website. This announcement will also give an opportunity for other vendors to demonstrate their ability to meet the FBI's specific needs through a submission of their technical capabilities and cost information for consideration prior to an award being issued.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Prior to issuing an award, the Contracting Officer will determine that the proposed price is fair and reasonable in accordance with FAR 13.106-3.

8. A description of the market research conducted and the results.

Market research was conducted using commercial manufacturer websites; technical calls with presentations; and internal requirement meetings. TIEDS Center personnel conversed with other laboratories, to include the Transportation Security Laboratory (TSL) in Atlantic City, New Jersey; and the Tyndall Reactive Materials Group (TRMG) in Panama City, Florida.

9. Any other facts supporting the use of other than full and open competition.

See section 5 above.

10. A listing of any sources that expressed a written interest in the acquisition.

A synopsis will be posted on the SAM.gov website. This synopsis will give an opportunity for other vendors to demonstrate their ability to meet the FBI's specific needs through a submission of technical capabilities and cost information.

11. A statement of any actions the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated.

The FBI will continue to conduct market surveys and research available through industry shows and technology releases in the form of papers and journals. This will be used to identify potential sources for subsequent acquisitions.

Reviews and Approvals (up to \$750,000.00)

Requestor:

I certify that the facts and representations under my cognizance, which are included in this justification, and which form a basis for this justification, are complete and accurate.

 Management and Program Analyst
 TIEDS Center Unit
 Redstone Arsenal, AL

 Date

Contracting Officer:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

 Bryan Lane
 National Acquisition Programs Unit
bvlane@fbi.gov
 Quantico, Virginia

 Date